

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MICHAEL ESTIME,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
MICHELLE GHONZ, Shield 16555, SERGEANT
WILLIAM BEISSEL, and POLICE OFFICERS JOHN
DOES # 1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 23, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER MICHELLE GHONZ, Shield No. 16555, 50th Precinct, 3450
Kingsbridge Ave, Bronx, NY 10463

SERGEANT WILLIAM BEISSEL, 50th Precinct, 3450 Kingsbridge Ave, Bronx, NY
10463

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MICHAEL ESTIME,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHELLE GHONZ, Shield 16555, SERGEANT
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Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MICHAEL ESTIME, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 23, 2016, at approximately 9:45 a.m., plaintiff Michael Estime, while lawfully present inside of 2899 Kingsbridge Terrance, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, unlawful strip search, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by the defendant police officers when they slammed plaintiff to the ground and pepper sprayed plaintiff causing plaintiff to suffer serious physical injury. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial in Bronx County Criminal Court until all criminal charges brought against plaintiff were dismissed on or about September 29, 2016. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, strip searched, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MICHAEL ESTIME is a resident of the state of New York.
3. POLICE OFFICER MICHELLE GHONZ, Shield No. 16555, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER MICHELLE GHONZ, Shield No. 16555, is and was at all times relevant herein, assigned to the 50th Precinct
5. POLICE OFFICER MICHELLE GHONZ, Shield No. 16555, is being sued in her individual and official capacity.
6. SERGEANT BEISSEL is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT BEISSEL is and was at all times relevant herein, assigned to the 50th Precinct
8. SERGEANT BEISSEL is being sued in his individual and official capacity.
9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. Police Officers John Does #1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on December 9, 2016.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On February 23, 2016, at approximately 9:45 a.m., plaintiff was lawfully inside of the lobby of his sister's apartment building, located at 2899 Kingsbridge Terrace, Bronx, New York.

19. By way of background, plaintiff was picking up his mother, who had recently immigrated to the United States from Haiti, from his sister's apartment in order to bring her to plaintiff's home in New Jersey.

20. As plaintiff and his mother were exiting the building through the lobby, the defendant police officers unlawfully approached, stopped, questioned, frisked, and searched plaintiff without reasonable suspicion or probable cause.

21. At no point in time was plaintiff committing any crime, nor would any reasonable police officer believe that plaintiff committed any crime.

22. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers without legal justification or probable cause

23. Suddenly, without provocation or legal justification, the defendant police officers slammed plaintiff to the ground while he was handcuffed and defenseless and stepped on plaintiff, causing him severe pain.

24. While plaintiff was laying on the ground, the defendant officers pepper sprayed plaintiff, causing plaintiff severe pain and difficulty seeing.

25. At no time did plaintiff act in a physically threatening manner nor did the defendant officers have any objective reason to believe that plaintiff was physically threatening them.

26. Plaintiff was transported by the defendant police officers to the 50th Precinct.

27. Plaintiff asked for medical attention because he was suffering severe pain in his eyes and back.

28. EMS responded to the 50th Precinct and determined that plaintiff's injuries required treatment at a hospital.

29. Plaintiff was transported by EMS to Bronx North Central Hospital

30. At Bronx North Central Hospital, hospital staff x-rayed plaintiff's body and cleaned his eyes, and plaintiff was prescribed pain medication.

31. Defendants' use of excessive force against plaintiff was the direct and proximate cause of the physical injuries to plaintiff's eyes, back, and shoulders.

32. After plaintiff was treated at the hospital he was transported back to the 50th Precinct where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

33. At the precinct, defendants conducted a strip search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search, and had no reason to believe plaintiff was hiding contraband on his person, causing humiliation and emotional distress.

34. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

35. After approximately 24 hours in custody, plaintiff was transported from the 50th Precinct to Bronx County Central Booking and placed in a holding cell.

36. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

37. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

38. After being unlawfully detained for approximately 32 hours, plaintiff was arraigned in Bronx Criminal Court and charged with crimes he did not commit

39. Plaintiff was unlawfully charged with Obstruction of Governmental Administration and Resisting Arrest.

40. Thereafter, plaintiff appeared in Court on numerous occasions before all charges were dismissed on September 29, 2016.

41. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

42. The unlawful search, false arrest, and false imprisonment, unlawful strip search, denial of a right to fair trial, malicious prosecution, and excessive force of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, unlawfully strip searched, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

68. Defendants commenced and continued a criminal proceeding against plaintiff.

69. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

70. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

71. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants slamming plaintiff to the ground, stepping on plaintiff, and pepper spraying plaintiff, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Assault

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Battery

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner slammed plaintiff to the ground and pepper sprayed plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligence

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants owed a duty of care to plaintiff.

93. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently handcuffing plaintiff in an unreasonably tight and painful manner, and assaulting and battering plaintiff.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. All of the foregoing occurred without any fault or provocation by plaintiff.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Michael Estime. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

101. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein

107. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

108. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

109. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

110. In withholding/creating false evidence against plaintiff Michael Estime, and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

111. As a result of the foregoing, plaintiff Michael Estime, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

115. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

117. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

120. Defendants failed to intervene to prevent the unlawful conduct described herein.

121. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

122. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Unlawful Strip Search

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

128. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and he sustained great emotional injuries.

JURY DEMAND

129. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Michael Estime demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 23, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MICHELLE GHONZ, Shield No. 16555, 50th Precinct, 3450
Kingsbridge Ave, Bronx, NY 10463
SERGEANT WILLIAM BEISSEL, 50th Precinct, 3450 Kingsbridge Ave, Bronx, NY
10463

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 23, 2017

_____/s/
STUART E. JACOBS